

MASTER SERVICES AGREEMENT

SAMPLE / SYNTHETIC DOCUMENT — FOR SOFTWARE TESTING PURPOSES ONLY — NOT A
REAL CONTRACT

This Master Services Agreement ("Agreement") is entered into as of March 3, 2025, by and between **Nimbus Cloud Solutions Pvt. Ltd.**, a company with offices at 4th Floor, Prism Tower, SG Highway, Ahmedabad, Gujarat 380015 ("Provider"), and **Brightleaf Retail Ventures LLC**, having its principal place of business at 221 Harbor Way, Suite 400, Austin, TX 78701 ("Client"). Provider and Client may each be referred to as a "Party" and collectively as the "Parties."

1. Services

Provider shall design, develop, host, and maintain a cloud-based inventory management platform (the "Services") for Client, as further described in Exhibit A. Provider may modify the scope of Services at its sole discretion upon written notice to Client, and such modification shall not require Client's consent.

2. Term and Termination

This Agreement shall commence on the Effective Date and continue for an initial term of thirty-six (36) months ("Initial Term"), automatically renewing for successive twelve (12) month periods unless either Party provides written notice of non-renewal at least ninety (90) days prior to the end of the then-current term. Client may terminate this Agreement for convenience only upon payment of a termination fee equal to one hundred percent (100%) of the fees remaining for the balance of the Initial Term.

3. Fees and Payment

Client shall pay Provider a monthly fee of \$18,500, due within seven (7) days of invoice date. Late payments shall accrue interest at 3.5% per month (42% annually). Provider reserves the right to increase fees by up to 15% annually upon thirty (30) days' notice, without requiring Client's agreement.

4. Limitation of Liability

IN NO EVENT SHALL PROVIDER'S TOTAL LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT EXCEED THE FEES PAID BY CLIENT IN THE PRECEDING ONE (1) MONTH. PROVIDER SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOSS OF DATA, LOSS OF PROFITS, OR BUSINESS INTERRUPTION, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. THIS LIMITATION SHALL APPLY EVEN IN THE EVENT OF PROVIDER'S GROSS NEGLIGENCE.

5. Indemnification

Client shall indemnify, defend, and hold harmless Provider, its officers, directors, and employees from and against any and all claims, damages, losses, and expenses (including reasonable attorneys' fees) arising out of or related to Client's use of the Services, regardless of whether such claims arise from Provider's acts or omissions. Provider shall have no obligation to indemnify Client under any circumstances.

6. Data Ownership and Usage

All data submitted by Client to the platform ("Client Data") shall remain the property of Client; provided, however, that Provider shall retain a perpetual, irrevocable, royalty-free, worldwide license to use, aggregate, and anonymize Client Data for the purposes of improving Provider's products, training machine learning models, and internal analytics, including after termination of this Agreement.

7. Confidentiality

Each Party agrees to protect the other's Confidential Information using the same degree of care it uses for its own confidential information, but in no event less than reasonable care. This obligation shall survive termination of this Agreement for a period of three (3) years.

8. Non-Compete and Non-Solicitation

During the term of this Agreement and for a period of twenty-four (24) months thereafter, Client shall not, directly or indirectly, develop, license, or procure any software or service that competes with the Services, nor solicit or hire any employee or contractor of Provider.

9. Auto-Renewal and Price Escalation Acknowledgment

Client expressly acknowledges and agrees that failure to provide timely non-renewal notice under Section 2 shall constitute binding acceptance of automatic renewal at the then-current fee schedule, including any increases applied under Section 3, and Client waives any right to contest such renewal on the grounds of lack of separate written consent.

10. Dispute Resolution

Any dispute arising under this Agreement shall be resolved through binding arbitration administered in Wilmington, Delaware, under the rules of the American Arbitration Association. Client waives any right to a jury trial and any right to participate in a class action against Provider. Each Party shall bear its own legal fees regardless of outcome.

11. Governing Law

This Agreement shall be governed by the laws of the State of Delaware, without regard to its conflict of laws principles.

12. Entire Agreement

This Agreement, including its Exhibits, constitutes the entire agreement between the Parties and supersedes all prior negotiations, representations, or agreements, whether written or oral.

SIGNATURES

PROVIDER: Nimbus Cloud Solutions Pvt. Ltd.

CLIENT: Brightleaf Retail Ventures LLC

Signature: _____

Name: Rahul Mehta

Title: Chief Executive Officer

Date: _____

Signature: _____

Name: Jordan Ellis

Title: VP of Operations

Date: _____

Note: This document is entirely fictional, generated for the purpose of testing AI contract-review software. Any resemblance to real companies, persons, or agreements is coincidental.